

IN THE SENATE

SENATE BILL NO. 1311

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO IGNITION INTERLOCK SYSTEMS; AMENDING SECTION 18-8008, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING IGNITION INTERLOCK SYSTEMS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 18-8008, Idaho Code, be, and the same is hereby amended to read as follows:

18-8008. IGNITION INTERLOCK SYSTEMS.

(1) (a) If a person is convicted, is found guilty, pleads guilty or receives a withheld judgment for violating any of the provisions of this chapter relating to driving under the influence and has had any or all of a sentence or fine suspended for the violation, the court shall, unless an exception is granted pursuant to section 18-8002(12), Idaho Code, impose the sanction provided for in this section in addition to any other penalty or fine imposed pursuant to this chapter.

(b) The court shall order the person to have a state-approved ignition interlock system installed, at his expense, on all motor vehicles operated by him. A court may determine that an offender is eligible to utilize available funds from the court interlock device and electronic monitoring device fund, as outlined in section 18-8010, Idaho Code, for the installation and operation of an ignition interlock device, based on evidence of financial hardship.

(2) The calibration setting at which the ignition interlock system will prevent the motor vehicle from being started shall be .025. The ignition interlock vendor shall notify the prosecuting authority any time a person is prevented from starting a motor vehicle, as provided in this subsection.

(3) As used in this chapter, the term "ignition interlock system" means breath alcohol ignition interlock device, including a camera, certified by the transportation department, designed to prevent a motor vehicle from being operated by a person who has consumed an alcoholic beverage.

(4) The transportation department shall by rule provide standards for the certification, installation, repair and removal of the devices. The ignition interlock vendor shall provide proof of installation of the ignition interlock system to the transportation department.

(5) The court shall notify the transportation department of its order imposing a sanction pursuant to this section. The department shall attach or imprint a notation on the driver's license or other document granting the person restricted driving privileges of any person restricted under this section that the person may operate only a motor vehicle equipped with an ignition interlock system. The ignition interlock restriction period shall end one (1) year from the date the ignition interlock vendor provides proof of installation of the ignition interlock system.

1       (6) When a court orders a person to install and use an ignition inter-  
2 lock system pursuant to this section, the court shall order the person to pay  
3 the cost for obtaining, installing, utilizing and maintaining the ignition  
4 interlock system. All fees collected pursuant to this section shall be in  
5 addition to any other fines or penalty provided by law and shall be deposited  
6 in the court interlock device and electronic monitoring device fund created  
7 in section 18-8010, Idaho Code.

8       SECTION 2. An emergency existing therefor, which emergency is hereby  
9 declared to exist, this act shall be in full force and effect on and after  
10 July 1, 2026.